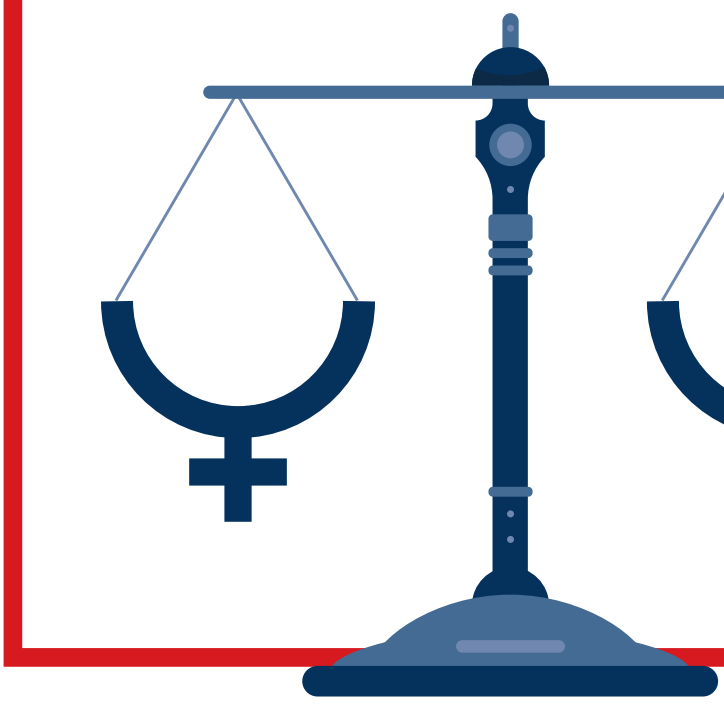
desirable at this stage". We had had a very large number of consultations with stakeholders—only a few years ago—and there was some unanimity against a UCC. The Directive Principles only say the State shall endeavour to provide for its citizens a Uniform Civil Code throughout the territory of India. That "endeavour" has existed since 1954, when the Special Marriage Act was passed. The 6th Schedule should make us reflect: when there can be regional/social exceptions that are constitutionally protected, for the Northeast and for tribal groups, perhaps there is merit in accepting the idea of difference and addressing discrimination instead. We had listed exactly what we thought was desirable: that inheritance law for Muslims be codified, that Hindu law be amended to simplify the procedure of divorce (introducing irretrievable breakdown of marriage as a valid ground), that Parsi women be allowed to inherit property even if they marry outside the religion. The courts had already settled matters such as triple talaq, Hindu women's inheritance, Muslim women's maintenance. Amended personal law still has a veneer of sharing a link with the sacred. With UCC, I foresee a hurdle in compliance: citizens may opt out of judicial remedies pitched as anti-religion.

"The UCC will make sense only if it pursues gender justice rather than emphasising uniformity—a law that also addresses Article 25"

–HASINA KHAN

Q. HOW WILL UCC BENEFIT THE COMMON CITIZEN?



PINKY ANAND: A uniform code will ensure the elimination of any discriminatory provisions that may exist in religion-based personal laws, guaranteeing that individuals have equal rights and opportunities in matters of marriage, adoption, divorce and inheritance. Its impact on the average person will be determined by the precise rules and protections incorporated in it. It could help promote gender justice and serve as a powerful instrument empowering women to exercise their rights more effectively. Because there is no unified civil law, individuals need to navigate multiple legal systems based on their beliefs. This exercise is onerous, perplexing and time-consuming, making it difficult for citizens to comprehend and act per multiple laws in personal situations.

HASINA KHAN: We speak of women, Muslims, tribal communities, gender and sexual minorities...those considered to have a secondary citizenship status in our country. Many among these marginalised groups have been struggling against patriarchal institutions such as family, discriminatory practices within personal laws, and inequality for decades. If it's a consultative process with these groups and communities, it might be beneficial. So far, the discussion around UCC by the government has been through the media. It never reached out to the marginalised communities. In 2018, the 21st Law Commission gave recommendations on the UCC—and the problems with it in a diverse country like India—that were very positive. Women's groups also called for amendments in the Special Marriage Act, and spoke against the criminalisation of triple talaq, but the government did not take any action on any of these. On the other hand, we also witnessed increasing violence against women—e.g. the Kathua rape case, or the Sulli app deals that dehumanised Muslim women. Hence, it is not clear how this government will make the lives of Muslim women better by bringing a UCC.

Illustrations by **TANMOY CHAKRABORTY**